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一、文章中英文主旨

中文主旨

本文围绕美国最高法院关于**医生协助自杀**的裁决展开，指出法院虽未承认医生协助自杀具有宪法权利，但实际上支持了“双重效应”医学原则，这为医生给临终病人使用大剂量止痛药提供了法律依据。文章同时揭示了当前临终关怀存在的两大核心问题——疼痛治疗不足和过度使用无效且强制的医疗程序，并介绍了医学界为改善临终关怀采取的措施，以及法律界人士对规范医疗行为、保障临终病人权益的呼吁。

英文主旨

This article centers on the U.S. Supreme Court's ruling on physician-assisted suicide. It points out that although the Court did not recognize a constitutional right to physician-assisted suicide, it effectively upheld the medical principle of "double effect", which provides a legal basis for doctors to administer high doses of painkillers to terminally ill patients. The article also reveals two core problems in current end-of-life care: undertreatment of pain and overuse of ineffective and forced medical procedures. It further introduces measures taken by the medical community to improve end-of-life care and calls from legal professionals to regulate medical practices and protect the rights of dying patients.

二、逐句翻译+常考词汇+长难句分析

第一段

1. The Supreme Court's decisions on physician-assisted suicide carry important implications for how medicine seeks to relieve dying patients of pain and suffering.

- 翻译：美国最高法院关于医生协助自杀的裁决，对于医学界如何努力减轻临终病人的痛苦具有重要意义。
- 常考词汇/短语：
 - Supreme Court 最高法院
 - physician-assisted suicide 医生协助自杀
 - carry implications for 对.....具有重要意义/影响
 - relieve sb of sth 减轻某人的（负担、痛苦等）
 - dying adj. 临终的，垂死的
 - suffering n. 痛苦，苦难

2. Although it ruled that there is no constitutional right to physician-assisted suicide, the Court in effect supported the medical principle of "double effect", a centuries-old moral principle holding that an action having two effects—a good one that is intended and a harmful one that is foreseen—is permissible if the actor intends only the good effect.

- 翻译：尽管法院裁定宪法并未赋予医生协助自杀的权利，但它实际上支持了“双重效应”这一医学原则。这是一个有着数百年历史的道德原则，认为如果一个行为具有两种效应——预期的好效应和可预见的坏效应，那么只要行为人只追求好的效应，该行为就是被允许的。
- 常考词汇/短语：
 - rule v. 裁定，裁决
 - constitutional adj. 宪法的，符合宪法的
 - in effect 实际上，实质上
 - double effect 双重效应

- centuries-old adj. 有数百年历史的
- intend v. 打算, 意图
- foresee v. 预见, 预知
- permissible adj. 可允许的, 许可的
- actor n. 行为人, 行动者
- 长难句分析:
 - 主句: the court in effect supported the medical principle of "double effect"
 - Although 引导让步状语从句, 从句中嵌套 that 引导的宾语从句 (there is no constitutional right...)
 - a centuries-old moral principle 是 "double effect" 的同位语, 对其进行解释说明
 - holding that... 是现在分词短语作后置定语, 修饰 moral principle
 - 现在分词短语中的宾语从句主干: an action...is permissible
 - 破折号之间的内容是 two effects 的同位语, 两个 that 分别引导定语从句修饰 a good one 和 a harmful one
 - 句末 if the actor intends only the good effect 是条件状语从句, 修饰宾语从句的系表结构 is permissible

本段概括: 引出全文核心事件——最高法院关于医生协助自杀的裁决, 明确其核心立场: 不承认该行为的宪法权利, 但支持“双重效应”医学原则, 为下文展开论述奠定基础。

第二段

1. Doctors have used that principle in recent years to justify using high doses of morphine to control terminally ill patients' pain, even though increasing dosages will eventually kill the patient.

- 翻译: 近年来, 医生们一直在用这一原则来为自己使用大剂量吗啡控制临终病人疼痛的行为辩护, 尽管不断增加的剂量最终会导致病人死亡。
- 常考词汇/短语:
 - justify v. 证明.....正当, 为.....辩护
 - dose n. 剂量
 - morphine n. 吗啡
 - terminally ill 身患绝症的, 临终的
 - dosage n. (药的) 剂量, 服用量
 - eventually adv. 最终, 终于

本段概括: 说明“双重效应”原则在医疗实践中的具体应用——医生用其为给临终病人使用大剂量吗啡的行为辩护。

第三段

1. Nancy Dubler, director of Montefiore Medical Center, contends that the principle will shield doctors who until now have very, very strongly insisted that they could not give patients sufficient medication to control their pain if that might hasten death.

- 翻译: 蒙特菲奥雷医疗中心主任南希·杜布勒认为, 这一原则将保护那些医生——他们直到现在还一直强烈坚持, 如果给病人足够的药物止痛可能会加速死亡, 那么他们就不能这么做。
- 常考词汇/短语:
 - contend v. 主张, 认为
 - shield v. 保护, 庇护
 - insist v. 坚持, 坚决主张
 - sufficient adj. 足够的, 充分的

- medication n. 药物, 药剂
- hasten v. 加速, 催促
- 长难句分析:
 - 主句: Nancy Dubler contends that...
 - director of Montefiore Medical Center 是主语的同位语, 介绍身份
 - 第一个 that 引导宾语从句, 主干: the principle will shield doctors
 - who 引导定语从句修饰 doctors, 定语从句中又嵌套 that 引导的宾语从句 (they could not give patients...)
 - 宾语从句中包含 if 引导的条件状语从句 (if that might hasten death)

本段概括: 引用医学专家南希·杜布勒的观点, 说明“双重效应”原则将消除医生的顾虑, 使他们能够为临终病人提供足够的止痛治疗。

第四段

1. **George Annas, chair of the health law department at Boston University, maintains that, as long as a doctor prescribes a drug for a legitimate medical purpose, the doctor has done nothing illegal even if the patient uses the drug to hasten death.**
 - 翻译: 波士顿大学健康法律系主任乔治·安纳斯认为, 只要医生是出于合法的医疗目的开处方, 即使病人用该药物加速了死亡, 医生的行为也不构成违法。
 - 常考词汇/短语:
 - maintain v. 坚持认为, 主张
 - as long as 只要
 - prescribe v. 开 (处方), 开药
 - legitimate adj. 合法的, 正当的
 - medical purpose 医疗目的
 - illegal adj. 非法的, 违法的
2. **"It's like surgery," he says. "We don't call those deaths homicides because the doctors didn't intend to kill their patients, although they risked their death."**
 - 翻译: “这就像外科手术,”他说, “我们不会把那些死亡称为他杀, 因为医生并没有想要杀死病人, 尽管他们冒着病人死亡的风险。”
 - 常考词汇/短语:
 - surgery n. 外科手术
 - homicide n. 他杀, 杀人行为
 - risk v. 冒.....的风险
3. **"If you're a physician, you can risk your patient's suicide as long as you don't intend their suicide."**
 - 翻译: “如果你是一名医生, 只要你没有意图让病人自杀, 你就可以冒病人可能自杀的风险。”
 - 常考词汇/短语:
 - physician n. 医生, 内科医生
 - suicide n. 自杀

本段概括: 引用法律专家乔治·安纳斯的观点, 从法律角度进一步阐释“双重效应”原则: 只要医生出于合法医疗目的, 即使其行为间接导致病人死亡, 也无需承担法律责任。

第五段

1. **On another level, many in the medical community acknowledge that the assisted-suicide debate has been fueled in part by the despair of patients for whom modern medicine has prolonged the physical agony of dying.**

- 翻译：另一方面，医学界许多人承认，关于医生协助自杀的争论在一定程度上是由病人的绝望情绪引发的——对这些病人来说，现代医学只是延长了他们临终时的肉体痛苦。
- 常考词汇/短语：
 - on another level 在另一方面
 - medical community 医学界
 - acknowledge v. 承认，认可
 - fuel v. 加剧，引发，给.....提供燃料
 - in part 在一定程度上，部分地
 - despair n. 绝望
 - prolong v. 延长，拖延
 - agony n. 极大的痛苦，剧痛
- 长难句分析：
 - 主句：many in the medical community acknowledge that...
 - that 引导宾语从句，主干：the assisted-suicide debate has been fueled in part by the despair of patients
 - for whom 引导定语从句修饰 patients，whom 指代 patients

本段概括：从另一个角度分析医生协助自杀争论的根源：现代医学延长了临终病人的肉体痛苦，导致病人产生绝望情绪。

第六段

1. **Just three weeks before the Court's ruling on physician-assisted suicide, the National Academy of Science (NAS) released a two-volume report, Approaching Death: Improving Care at the End of Life.**

- 翻译：就在最高法院就医生协助自杀作出裁决的三周前，美国国家科学院（NAS）发布了一份两卷本的报告——《走近死亡：改善临终关怀》。
- 常考词汇/短语：
 - release v. 发布，发行
 - two-volume adj. 两卷本的
 - end-of-life care 临终关怀

2. **It identifies the undertreatment of pain and the aggressive use of "ineffectual and forced medical procedures that may prolong and even dishonor the period of dying" as the twin problems of end-of-life care.**

- 翻译：该报告指出，临终关怀存在两大问题：一是对疼痛的治疗不足，二是过度使用“那些可能延长甚至玷污死亡过程的无效且强制的医疗程序”。
- 常考词汇/短语：
 - identify...as... 把.....认定为，指出.....是
 - undertreatment n. 治疗不足
 - aggressive adj. 过度的，激进的
 - ineffectual adj. 无效的，不起作用的
 - forced adj. 强制的，被迫的
 - procedure n. 程序，医疗程序

- dishonor v. 玷污, 使蒙羞
- twin problems 双重问题, 两大问题
- 长难句分析:
 - 主句: It identifies A and B as the twin problems of end-of-life care
 - A = the undertreatment of pain, B = the aggressive use of "ineffectual and forced medical procedures..."
 - that 引导定语从句修饰 medical procedures, 说明这些程序的危害

本段概括: 引用美国国家科学院的权威报告, 明确指出当前临终关怀存在的两大核心问题: 疼痛治疗不足和过度使用无效医疗程序。

第七段

1. The profession is taking steps to require young doctors to train in hospices, to test knowledge of aggressive pain management therapies, to develop a Medicare billing code for hospital-based care, and to develop new standards for assessing and treating pain at the end of life.

- 翻译: 医学界正在采取措施, 要求年轻医生在临终关怀医院接受培训, 考核他们对强效疼痛管理疗法知识, 制定医院临终关怀的医疗保险计费代码, 并制定评估和治疗临终疼痛的新标准。
- 常考词汇/短语:
 - take steps to do sth 采取措施做某事
 - hospice n. 临终关怀医院
 - pain management 疼痛管理
 - therapy n. 疗法, 治疗
 - Medicare n. (美国) 医疗保险制度
 - billing code 计费代码
 - assess v. 评估, 评价

本段概括: 介绍医学界为解决临终关怀问题所采取的具体措施, 包括医生培训、知识考核、医保政策完善和标准制定。

第八段

1. Annas says lawyers can play a key role in insisting that these well-meaning medical initiatives translate into better care.

- 翻译: 安纳斯说, 在坚持让这些善意的医疗举措转化为更好的护理服务方面, 律师可以发挥关键作用。
- 常考词汇/短语:
 - play a key role in 在.....中发挥关键作用
 - well-meaning adj. 善意的, 好心的
 - initiative n. 举措, 倡议
 - translate into 转化为, 转变为

2. "Large numbers of physicians seem unconcerned with the pain their patients are needlessly and predictably suffering", to the extent that it constitutes "systematic patient abuse".

- 翻译: “大量医生似乎对他们的病人正在遭受的不必要且可预见的痛苦漠不关心”, 这种情况甚至到了构成“系统性虐待病人”的程度。
- 常考词汇/短语:
 - unconcerned with 对.....漠不关心
 - needlessly adv. 不必要地
 - predictably adv. 可预见地

- to the extent that 到了.....的程度
- constitute v. 构成, 组成
- systematic adj. 系统性的, 有组织的
- abuse n. 虐待, 滥用

3. He says medical licensing boards "must make it clear...that painful deaths are presumptively ones that are incompetently managed and should result in license suspension".

- 翻译: 他说, 医疗执照管理委员会“必须明确.....病人痛苦地死亡可以推定是由于医生处理不当造成的, 应当吊销其行医执照”。
- 常考词汇/短语:
 - medical licensing board 医疗执照管理委员会
 - presumptively adv. 可推定地, 假设地
 - incompetently adv. 无能地, 不称职地
 - result in 导致, 造成
 - license suspension 吊销执照, 执照暂停

本段概括: 再次引用乔治·安纳斯的观点, 强调法律界在推动医疗举措落地、规范医生行为方面的重要作用, 并提出对失职医生的严厉处罚建议。

三、完整原文

Text 4

The Supreme Court's decisions on physician-assisted suicide carry important implications for how medicine seeks to relieve dying patients of pain and suffering.

Although it ruled that there is no constitutional right to physician-assisted suicide, the Court in effect supported the medical principle of "double effect", a centuries-old moral principle holding that an action having two effects—a good one that is intended and a harmful one that is foreseen—is permissible if the actor intends only the good effect.

Doctors have used that principle in recent years to justify using high doses of morphine to control terminally ill patients' pain, even though increasing dosages will eventually kill the patient.

Nancy Dubler, director of Montefiore Medical Center, contends that the principle will shield doctors who until now have very, very strongly insisted that they could not give patients sufficient medication to control their pain if that might hasten death.

George Annas, chair of the health law department at Boston University, maintains that, as long as a doctor prescribes a drug for a legitimate medical purpose, the doctor has done nothing illegal even if the patient uses the drug to hasten death. "It's like surgery," he says. "We don't call those deaths homicides because the doctors didn't intend to kill their patients, although they risked their death. If you're a physician, you can risk your patient's suicide as long as you don't intend their suicide."

On another level, many in the medical community acknowledge that the assisted-suicide debate has been fueled in part by the despair of patients for whom modern medicine has prolonged the physical agony of dying.

Just three weeks before the Court's ruling on physician-assisted suicide, the National Academy of Science (NAS) released a two-volume report, *Approaching Death: Improving Care at the End of Life*. It identifies the undertreatment of pain and the aggressive use of "ineffectual and forced medical procedures that may prolong and even dishonor the period of dying" as the twin problems of end-of-life care.

The profession is taking steps to require young doctors to train in hospices, to test knowledge of aggressive pain management therapies, to develop a Medicare billing code for hospital-based care, and to develop new standards for assessing and treating pain at the end of life.

Annas says lawyers can play a key role in insisting that these well-meaning medical initiatives translate into better care. "Large numbers of physicians seem unconcerned with the pain their patients are needlessly and predictably suffering", to the extent that it constitutes "systematic patient abuse". He says medical licensing boards "must make it clear...that painful deaths are presumptively ones that are incompetently managed and should result in license suspension".

四、完整译文

课文4

美国最高法院关于医生协助自杀的裁决，对于医学界如何努力减轻临终病人的痛苦具有重要意义。

尽管法院裁定宪法并未赋予医生协助自杀的权利，但它实际上支持了“双重效应”这一医学原则。这是一个有着数百年历史的道德原则，认为如果一个行为具有两种效应——预期的好效应和可预见的坏效应，那么只要行为人只追求好的效应，该行为就是被允许的。

近年来，医生们一直在用这一原则来为自己使用大剂量吗啡控制临终病人疼痛的行为辩护，尽管不断增加的剂量最终会导致病人死亡。

蒙特菲奥雷医疗中心主任南希·杜布勒认为，这一原则将保护那些医生——他们直到现在还一直强烈坚持，如果给病人足够的药物止痛可能会加速死亡，那么他们就不能这么做。

波士顿大学健康法律系主任乔治·安纳斯认为，只要医生是出于合法的医疗目的开处方，即使病人用该药物加速了死亡，医生的行为也不构成违法。“这就像外科手术，”他说，“我们不会把那些死亡称为他杀，因为医生并没有想要杀死病人，尽管他们冒着病人死亡的风险。如果你是一名医生，只要你没有意图让病人自杀，你就可以冒病人可能自杀的风险。”

另一方面，医学界许多人承认，关于医生协助自杀的争论在一定程度上是由病人的绝望情绪引发的——对这些病人来说，现代医学只是延长了他们临终时的肉体痛苦。

就在最高法院就医生协助自杀作出裁决的三周前，美国国家科学院（NAS）发布了一份两卷本的报告——《走近死亡：改善临终关怀》。该报告指出，临终关怀存在两大问题：一是对疼痛的治疗不足，二是过度使用“那些可能延长甚至玷污死亡过程的无效且强制的医疗程序”。

医学界正在采取措施，要求年轻医生在临终关怀医院接受培训，考核他们对强效疼痛管理疗法的知识，制定医院临终关怀的医疗保险计费代码，并制定评估和治疗临终疼痛的新标准。

安纳斯说，在坚持让这些善意的医疗举措转化为更好的护理服务方面，律师可以发挥关键作用。“大量医生似乎对他们的病人正在遭受的不必要且可预见的痛苦漠不关心”，这种情况甚至到了构成“系统性虐待病人”的程度。他说，医疗执照管理委员会“必须明确……病人痛苦地死亡可以推定是由于医生处理不当造成的，应当吊销其行医执照”。